

		Accordingly, the court continues the demurrer and motion to strike so that Defendants may properly serve Plaintiff with the moving papers, and that Defendants may attempt to meet and confer in compliance with Sections 430.41(a) and 435.5(a). Defendants shall file their updated proof of service no later than 5 calendar days before the continued hearing date. Defendants shall give notice.
9	Kayar vs. HJC Corp.	Defendant HJC Corporation moves to tax costs on appeal claimed by Plaintiff Melih Kayar. For the following reasons, the motion is GRANTED in part. Plaintiff shall recover \$5,924.42 in appellate costs. As an initial matter, the court finds Plaintiff’s Memorandum of Appellate Costs and Defendant HJC Corporation’s Motion to Tax Appellate Costs to be timely filed and served pursuant to California Rules of Court, Rules 3.1700 and 8.278. (ROA # 262, 276, 278.) <u>Standard on Motions to Tax or Strike Costs</u> A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. (Code of Civ. Proc. § 1032(b).) The items recoverable as costs on appeal are prescribed exclusively by California Rules of Court, rule 8.278(d)(1). No other costs are recoverable. (<i>Stratton v. Beck</i> (2018) 30 Cal.App.5th 901, 910.) If the items on a verified memorandum of costs appear to be proper charges, the memorandum is <i>prima facie</i> evidence of their propriety, and the burden is on the party contesting them to show that they were not reasonable or necessary. (<i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29; <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 773-774.) The party challenging costs does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence and prove that the costs are not recoverable. (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557; <i>see also Wagner Farms, supra</i>, 145 Cal.App.4th at pp.777-778.) If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (<i>Foothill-De Anza Comm. College Dist., supra</i>, 158 Cal.App.4th at p. 29.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the court to determine. (<i>Id.</i> at pp. 29-30.) <u>Challenged Appellate Costs</u> <u>Item 3. Preparation of reporter’s transcript.</u> Plaintiff seeks costs in the amount of \$6,579.50 for preparation of the reporter’s transcript. Defendants contend the only expense recoverable under Rule 8.278(d) is the \$130 paid to this Court on 03/15/24. In response, Plaintiff contends the costs include the transcripts for the 01/11/24 hearing on the motion to quash as well the “PMQ deposition transcripts of